530 Regulations of Shenzhen Special Economic Zone on the Administration of Intelligent Connected Vehicles深圳经济特区智能网联汽车管理条例

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(Adopted at the 10th Session of the Standing Committee of the 7th People’s Congress of Shenzhen Municipality on June 23, 2022)

Article 1 To standardize the use of intelligent connected vehicles (ICVs), protect the safety, property and other legitimate rights and interests of citizens, legal persons and other organizations, ensure road traffic safety and promote the high-quality and sustainable development of the ICV industry, these Regulations are formulated in accordance with the basic principles of relevant laws and administrative regulations and in light of the actual needs of Shenzhen Special Economic Zone.

Article 2 These Regulations shall apply to road tests, demonstration applications, market access, registration, use management and other related activities of intelligent connected vehicles within the Shenzhen Special Economic Zone.

Article 3 Intelligent connected vehicles (ICV) as mentioned in these Regulations refer to vehicles that can be operated safel on the road by an automatic driving system instead of a man, including conditional automatic driving, highly automatic driving and fully automatic driving.

Conditional automatic driving means that the automatic driving system can complete dynamic driving tasks under designe operating conditions. When the automatic driving system requests a takeover of the dynamic driving task, the driver shall respond to the request and immediately take over the vehicle.

Highly automatic driving means that the automatic driving system can complete all dynamic driving tasks under designed operating conditions. When the automatic driving system requests a takeover of the dynamic driving task in a specific environment, the driver shall respond to the request and immediately take over the vehicle.

Fully automatic driving means that the automatic driving system can complete dynamic driving tasks that the driver can complete on all kinds of roads, without a manual operation.

Vehicle-road collaborative infrastructure as mentioned in these Regulations refers to relevant infrastructure that realizes collaborative control between vehicles and road infrastructure and between vehicles and vehicles through wireless information interaction and sharing between vehicles and between vehicles and vehicles.

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Article 4 ICV administration shall adopt legal, orderly, safe and controllable administration and strict supervision. Appropriate administration measures shall be taken for ICVs at different development stages in light of technological development trends, standards, norms, infrastructure and other relevant factors.

Article 5 ICVs can be sold after being listed in the National Catalog of Automobile Products or the Catalog of Intelligent Connected Vehicles in Shenzhen and obtaining relevant market access. ICVs can be driven on the road after being registered with the traffic authorities of the public security organ. ICVs can be engaged in the road transport business with the consent of the transport authorities.

Article 6 Shenzhen Municipal People’s Government shall initiate favorable policies and ensure a favorable environment so as to boost the healthy, orderly and high-quality development of the ICV industry.

Article 7 Shenzhen Municipal People’s Government shall make an overall plan to build a government supervision platform for ICVs, realize vehicle-road-cloud supervision and ensure traffic, cyberspace and data safety.

Article 8 The municipal transport authorities shall, together with the municipal industry and information technology authorities and the traffic authorities of the municipal public security organ, supervise and administer ICV road tests and demonstration applications, and administer ICV road transport.

The municipal industry and information technology authorities shall formulate local standards of ICV products and administer the market access of ICV products.

The municipal market supervision authorities shall review and release local standards of ICV products, supervise and administer ICV certification and ICV tests, and recall defective ICV products.

The traffic management departments of the municipal public security authorities shall be responsible for ICV registration and the management of road traffic safety.

The municipal cyberspace authorities shall coordinate the supervision and administration of cyberspace and data security of ICVs.

Other relevant authorities shall supervise and administer ICVs within their respective duties.

Article 9 The municipal industry and information technology authorities may encourage the establishment of a R&D platform for ICV generic technologies to support technology R&D and standard formulation for ICV-related sensors, controllers, actuators, big data, cloud computing, communication networks and artificial intelligence (AI).

ICV-related enterprises shall be encouraged to innovate their technologies and join technical exchanges.

Article 10 Insurance enterprises shall be encouraged to develop insurance products that cover various risks in the whole chain of ICV products, such as design, manufacturing, use, operation, data and algorithm services.

ICVs under road tests or demonstration applications or running on roads shall be insured by commercial insurance in accordance with relevant provisions.

Chapter II Road Tests and Demonstration Applications

Article 11 Road tests as mentioned in these Regulations refer to tests of the automatic driving function on ICVs on designated road sections.

Road test subject as mentioned in these Regulations refer to the party that applies for road test, organizes road test and assumes corresponding responsibilities.

Article 12 Demonstration applications as mentioned in these Regulations refer to activities where ICVs carry passengers or objects on designated road sections for pilot or trial.

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Demonstration application subject as mentioned in these Regulations refers to the party or a group of parties that applies for demonstration applications, organizes demonstration applications and assumes corresponding responsibilities.

Article 13 The municipal transport authorities shall establish a joint working mechanism with the municipal industry and information technology authorities and the traffic authorities of the municipal public security organ to formulate specific measures on road tests and demonstration applications in Shenzhen Municipality in accordance with these Regulations and relevant provisions of the State, and organize their implementation.

Article 14 An administration system for applications for road tests and demonstration applications shall be implemented. Road test and demonstration application subjects can carry out road tests or demonstration applications in Shenzhen Municipality after applying to relevant municipal competent authorities in accordance with relevant provisions and, as confirme by relevant competent municipal authorities, obtaining a temporary license plate for motor test vehicles issued by the traffic authorities of the municipal public security organ.

The road test subject applying for ICV that has completed or is taking a road test in another province or municipality for th same activity in Shenzhen Municipality can obtain a temporary license plate for motor test vehicles by submitting the original application documents, relevant documents for a non-local road test and self-declaration of safety for road tests in Shenzhen Municipality as confirmed by relevant municipal competent authorities.

Article 15 In the process of demonstration applications, the demonstration application subject shall inform the owner, manager and driver of the goods carried on the ICV of relevant risks in writing in advance and take necessary safety measures.

Road tests and demonstration applications shall not interfere with normal road traffic. Illegal road transport business and dangerous goods are prohibited.

Article 16 Relevant municipal competent authorities shall select appropriate road sections, areas and time periods that can support automatic driving and network-connected functions of ICVs for ICV road tests and demonstration applications.

Relevant municipal competent authorities shall announce to the public the road sections, areas and time periods of road tests and demonstration applications, set up corresponding signs and release prompt information such as safety precautions.

Article 17 Shenzhen Municipal People’s Government may choose administrative regions with relatively sound vehicle-roa collaborative infrastructure for fully open road tests and demonstration applications, and explore pilot commercial operation.

Specific measures for road tests and demonstration applications in fully open administrative regions shall be formulated separately by the local district people’s government and promulgated for implementation after being submitted to and approved by Shenzhen Municipal People’s Government.

Article 18 Qualified ICV-related enterprises shall be encouraged to build simulated road and traffic platforms and conduct simulation tests and technical checks on the automatic driving system of ICVs.

Article 19 Traffic violations or traffic accidents occurring during road tests and demonstration applications of ICVs as well a other matters and circumstances not explicitly provided for in this chapter shall be subject to the provisions of relevant competent authorities on road tests and demonstration applications.

Chapter III Market Access and Registration

Article 20 An administration system for the market access of ICV

The municipal industry and information technology authorities shall, according to the application of the ICV product manufacturer, list ICV products that meet the local standards of Shenzhen Municipality in the Catalog of Intelligent Connected Vehicles in Shenzhen and disclose it to the public.

ICV products not listed in the National Catalog of Automobile Products or the Catalog of Intelligent Connected Vehicles in Shenzhen shall not be sold or registered in Shenzhen Municipality.

Article 21 The municipal industry and information technology authorities shall, according to technological and industrial development, develop local standards of ICV products, which shall be approved and issued by the municipal market supervisio authorities according to the law.

Article 22 Local standards of ICV products shall conform to the development trends of ICV technology, shall not exclude technologies of different development paths and shall be updated in a timely manner according to technological development.

Article 23 ICV-related industry associations shall be encouraged to, based on international advanced standards, mount the formulation of leading and innovative group standards of ICV products by enterprises and institutions engaged in ICVs and related industries, report such standards to the municipal industry and information technology authorities for registration and disclose them to the public through relevant standard information platforms.

Article 24 Manufacturers of ICV products that apply for their products to be included in the Catalog of Intelligent Connecte Vehicles in Shenzhen shall submit relevant documents to the municipal industry and information technology authorities for review and evaluation. After passing the review and evaluation, they shall submit their products to inspection and testing agencies recognized by the municipal industry and information technology authorities for inspection and testing. After they have obtained product inspection and testing compliance reports, the municipal industry and information technology authorities shall include those products that comply with local standards of Shenzhen Municipality in the Catalog of Intelligent Connected Vehicles in Shenzhen.

Article 25 The municipal industry and information technology authorities may set restrictions on the scope of use and application of ICV products included in the Catalog of Intelligent Connected Vehicles in Shenzhen.

Article 26 ICV products sold in Shenzhen Municipality shall be those that can connect on-board equipment to the government supervision platform and upload security data in accordance with regulatory requirements. To sell ICV products, or shall connect on-board equipment to the government supervision platform and upload operation security data in accordance with regulatory requirements.

Article 27 An ICV registration system shall be implemented. ICVs listed in the National Catalog of Automobile Products or the Catalog of Intelligent Connected Vehicles in Shenzhen can drive on the road only after they have been registered by the traffic authorities of the municipal public security organ.

Article 28 To register an ICV, in addition to the documents and certificates required for the registration of motor vehicles, the following conditions shall also be met:

1. Operation security data of on-board equipment of the ICV have been connected with the government supervision platform in accordance with relevant regulations;

2. The ICV has been insured with the compulsory traffic accident liability insurance for motor vehicles and the third-party liability insurance for motor vehicles;

3. The manned ICV shall also be insured with the passenger liability insurance for motor vehicles.

Specific measures for ICV registration shall be separately formulated by the traffic authorities of the municipal public securi organ.

Article 29 The owner or manager of an ICV who deals with traffic-related services such as vehicle registration, inspection stickers, road traffic safety violations or traffic accidents shall provide the traffic authorities of the municipal public security organ with authentic and effective contact information such as correspondence address and mobile phone number. Changes in such information shall be reported to the traffic authorities of the municipal public security organ within ten days from the date of such changes.

Article 30 The manufacturer and seller of ICV products shall be responsible for the quality and safety of the products they manufacture and sell, and set up sound mechanisms for product quality and safety traceability.

Article 31 The manufacturer of ICV products shall introduce how to handle general faults in detail in the manual.网站支持IPv6

The manufacturer and seller of ICV products shall formulate sound after-sales service mechanisms and provide timely and comprehensive technical support or rescue services to ensure personal and property safety according to the requirements of IC owners, managers, drivers or passengers when a major failure or emergency that endangers life or property safety occurs or m occur.

Article 32 If an ICV product listed in the Catalog of Intelligent Connected Vehicles in Shenzhen updates its automatic drivir system and other facilities or equipment involving vehicle safety, its manufacturer shall register such an update with the municipal industry and information technology authorities.

Article 33 If a manufacturer of ICV products learns that any product it has manufactured may have defects that endanger life or property safety, it shall immediately mount an investigation and analysis and truthfully report the investigation and analysis result to the municipal market supervision authorities. If it confirms that there are defects in an ICV product that endanger life or property safety, it shall immediately stop production, sale and import of such a defective product and recall it.

If an operator of ICV products learns that any product it operates has defects that endanger life or property safety, it shall immediately stop selling, leasing and using such a defective product and assist the manufacturer in recalling it.

Chapter IV Use Management

Article 34 The ICV of conditional automatic driving or highly automatic driving shall be equipped with the manual driving mode, corresponding devices and a driver.

The ICV of fully automatic driving may not be equipped with the manual driving mode, corresponding devices or a driver. However, it can only drive in the areas and road sections designated by the traffic authorities of the municipal public security organ.

Article 35 The ICV driver shall know and use automatic driving in a standardized manner according to road traffic regulations and the manual.

When the ICV of conditional automatic driving or highly automatic driving is driving in the automatic mode, the driver shall sit in the driver’s seat, monitor the running state of the vehicle and the surrounding environment, and be ready to take over the vehicle at any time. When the ICV requests a takeover or is in a state not suitable for automatic driving, the driver shall immediately take over the vehicle.

The ICV of fully automatic driving without a driver shall be able to turn on danger warning lights, pull over to avoid influencing the traffic or take effective measures to reduce operation risks such as reducing speed and being taken over remote when there is a failure, it is not suitable for automatic driving or there are other conditions that affect traffic safety.

Article 36 The manufacturer of ICV products shall install an external indicator light on the ICV for the automatic driving mode, which shall be turned on when the ICV is driving in the automatic driving mode, to send an obvious safety warning to other vehicles and pedestrians on the road.

The ICV for the road transport business shall offer safety warnings with prominent markings on its body. The ICV for passenger transport shall play voice prompts in the vehicle.

Article 37 The on-board equipment of ICVs shall record and store data such as the position, operating status, driving mode and surveillance video inside and outside the vehicle at least 90 seconds before an accident or failure of the vehicle and mainta the continuity and integrity of such data.

The data storage period specified in the preceding paragraph shall not be less than 30 days.

Article 38 The ICV owner and manager shall regularly maintain the automatic driving system and other facilities and equipment related to ICV safety.

The ICV owner and manager shall, in accordance with relevant requirements of the traffic authorities of the municipal publi security organ, regularly carry out safety technical inspections of the ICV according to the vehicle model, purpose and service life.

Article 39 Where an ICV is used for the road transport business, the operator shall obtain a road transport business permit and a road transport certificate for the vehicle. The municipal transport authorities shall formulate market access requirements and supporting norms for ICV road transport and organize their implementation.

Chapter V Vehicle-road Collaborative Infrastructure

Article 40 Municipal and district people’s governments may, in light of the application scenarios of ICVs, make overall plans and build supporting infrastructure for vehicle-road collaboration such as ICV communication facilities, perception faciliti and computing facilities.

ICV-related enterprises, for road tests and demonstration applications, may apply to the municipal transport authorities, th traffic authorities of the municipal public security organ and the urban management and law enforcement authorities to build vehicle-road collaborative infrastructure on the public infrastructure within their jurisdictions, which relevant competent authorities shall support.

Article 41 The municipal transport authorities and the traffic authorities of the municipal public security organ may set up unique traffic signals on the road sections open to ICVs. ICVs shall travel on the road according to relevant traffic signals.

Article 42 The open sharing of resources such as vehicle-road collaborative infrastructure data, information and communication networks shall be encouraged, except for data involving national security, public security and personal information.

Article 43 For vehicle-road collaborative infrastructure, facilities and equipment involving the communication technology shall obtain the network access certification issued by the national industry and information technology authorities in accordance with relevant provisions. Facilities and equipment involving life or property safety shall obtain the reliability certification report in accordance with relevant national mandatory standards or requirements.

Chapter VI Cyberspace Security and Data Protection

Article 44 The municipal cyberspace authorities shall coordinate the supervision and administration of cyberspace security risks of ICV products, services and their supply chains in Shenzhen Municipality, with the municipal authorities of transport, public security and industry and information technology undertaking relevant supervision and administration duties specifically according to their respective duties.

Article 45 The municipal cyberspace authorities shall coordinate the formulation of an emergency plan for ICV cyberspace security incidents. The municipal authorities of transport, public security and industry and information technology shall, according to their respective duties, formulate emergency plans for ICV cyberspace security incidents, stipulate the classificatio of ICV cyberspace security incidents, the assignment of duties for incident handling, the prevention and early warning mechanism, the disposal procedure and emergency measures, and organize emergency drills and handling.

Article 46 The ICV-related enterprise shall pass the security inspection certification for key network equipment and dedicated cyberspace security products according to the law. Efforts shall also be made to formulate an emergency plan for ICV cyberspace security incidents according to the law and establish a cyberspace security assessment and administration mechanism to ensure the integrity, security, confidentiality and availability of cyberspace data and prevent data leakage, theft and tampering.

Article 47 The ICV-related enterprise shall, according to relevant national provisions, formulate a data security managemer system and privacy protection plan. Measures shall be taken to prevent data leakage, loss and damage. The server for data

storage shall be set in the People’s Republic of China. Without approval, relevant data and information shall not be transmitte or transferred abroad.

When there is or may be data leakage, damage or loss involving national security or users’ personal information, the ICV-related enterprise shall immediately take remedial measures, inform users in a timely manner and report to relevant authorities in accordance with relevant regulations.

Article 48 It is prohibited to use ICVs in the following activities:

1. Illegal collection, processing and use of personal information;

2. Collection of information unrelated to the vehicle’s driving and traffic safety;

3. Illegal collection of information related to national security.

Article 49 The enterprise or organization engaged in ICV R&D, manufacturing or operation, with the consent of the traffic authorities of the municipal public security organ, can obtain anonymous data such as traffic violations and traffic accidents related to its ICV products.

Chapter VII Traffic Violations and Accidents

Article 50 The provisions of this chapter shall apply to road traffic violations or traffic accidents involving lawfully registere ICVs.

Article 51 If an ICV with a driver violates road traffic regulations, the traffic authorities of the municipal public security organ shall punish the driver according to the law.

If a fully automatic ICV without a driver violates road traffic regulations, the vehicle owner and manager shall be punished by the traffic authorities of the municipal public security organ according to the law.

When dealing with traffic violations according to the second paragraph of this article, relevant provisions on drivers’ demerit points shall not apply to the punishment of the violator.

Article 52 In the event of a traffic accident involving an ICV with a driver, the driver shall stop the vehicle immediately to protect the scene. If personal injury or death is caused, the driver shall immediately rescue the injured person and promptly report the accident to the police.

In the event of a traffic accident involving a fully automatic ICV without a driver, the party concerned shall immediately report the accident to the police and the vehicle owner and manager shall save information about the accident.

Article 53 If an ICV with a driver causes damage in a traffic accident and the responsibility shall be borne by the ICV, the driver shall be liable for compensation.

If a fully automatic ICV without a driver causes damage in a traffic accident and the responsibility shall be borne by the ICV, the owner and manager of the vehicle shall be liable for compensation.

Article 54 In the event of a traffic accident involving an ICV and damage caused by defects in it, the driver or the owner and manager may, after making compensations according to Article 53 of these Regulations, claim compensation from the manufacturer or seller according to the law.

Article 55 Objective information such as the running status and surrounding environment recorded by on-board equipmer roadside equipment or supervision platforms of the ICV can be used as an important basis for determining the responsibilities an ICV-related traffic accident.

Chapter VIII Legal Liabilities

Article 56 If a road test or demonstration application is carried out without authorization in violation of Article 14 of these Regulations, the traffic authorities of the municipal public security organ shall seize the ICV used for the road test or

demonstration application and impose a fine of no less than 100,000 yuan but no more than 500,000 yuan on the road test or demonstration application subject.

Article 57 If a product not listed in the National Catalog of Automobile Products or the Catalog of Intelligent Connected Vehicles in Shenzhen is sold in violation of the third paragraph of Article 20 of these Regulations, the municipal market supervision authorities shall confiscate the product illegally sold and impose a fine of no less than three times but no more than five times the value of the illegally sold product.

Article 58 If a manufacturer of ICV products conceals relevant information or provides false documents in order to obtain the market access of an ICV product, the municipal industry and information technology authorities shall give a warning and dismiss the application for the market access of the ICV product proposed by the same manufacturer within one year from the date of the penalty decision taking effect.

Article 59 If a manufacturer of ICV products obtains market access of an ICV by improper means such as fraud and bribery, the municipal industry and information technology authorities shall revoke the market access, give a warning and impose a fine of more than 500,000 yuan but less than 1,000,000 yuan and dismiss the application for the market access of the ICV proposed by the same manufacturer within three years from the date of the penalty decision taking effect.

Article 60 The manufacturer and seller of ICV products who violate the second paragraph of Article 31 of these Regulations and fail to establish a technical support or rescue service mechanism shall be ordered by relevant authorities to make correction within a time limit according to the law. Those who fail to make corrections within the time limit shall be fined no less than 50,000 yuan but no more than 500,000 yuan.

Article 61 Those who, in violation of Article 39 of these Regulations, engage in the road transport business without a road transport business permit or a road transport certificate shall be punished by the municipal transport authorities according to the law.

Article 62 Those who violate Articles 46, 47 and 48 of these Regulations and fail to protect cyberspace and data security according to the law shall be punished by relevant authorities according to the law.

Article 63 For those who have been punished for violating relevant provisions of these regulations, relevant authorities shall record their illegal acts in the public credit information system in Shenzhen Municipality according to relevant provisions.

Chapter IX Supplementary Provisions

Article 64 These Regulations shall enter into force on August 1, 2022.

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